RATIONALIST SOCIETY OF AUSTRALIA

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Hon. Michael Kirby AC CMG
Prof. the Hon. Gareth Evans AC QC
Prof. Fiona Stanley AC

Submission to the Joint Standing Committee on Electoral Matters' inquiry into the 2025 federal election

14 November 2025

This is a formal submission by the Rationalist Society of Australia to the federal parliament's Joint Standing Committee on Electoral Matters' inquiry into the 2025 federal election.

We are Australia's oldest freethought organisation, promoting reason, secularism and evidence-based policies. We are registered as a charity with the Australian Charities and Not-for-profits Commission (ACNC) for multiple purposes, including 'Advancing social or public welfare', 'Advancing education', 'Advancing public debate', and 'Promoting or protecting human rights'. We appreciate the opportunity to take part in the inquiry process.

We are deeply concerned about the widely reported conduct of some religious charities with charitable status for 'advancing religion' during the federal election. Such conduct – and resultant media coverage and public debate – has further undermined public trust and confidence in the charities system, especially relating to religious charities.

Activities of concern during the 2025 federal election

Catholic education authorities

During the election period, it was reported by media outlets that two Catholic education bodies – Catholic Schools NSW and the Victorian Catholic Education Authority – sent communications to parents and carers in their school communities, cautioning them against voting for certain candidates or parties[1].

[1] *The Age* (30 April 2025), 'Catholic schools election intervention in key seats sparks independents' ire', accessed November 2025, https://www.theage.com.au/national/catholic-schools-election-intervention-in-key-seats-sparks-independents-ire-20250430-p5lvfp.html; *Daily Telegraph* (30 April 2025), 'Catholic schools urge parents to boycott Greens, teals votes', accessed October 2025, https://www.dailytelegraph.com.au/news/national/federal-election/catholic-schools-body-begs-parents-to-not-vote-for-greens-or-teal-independent-candidates-in-federal-election/news-story/bb72b8fe5ec772ef2e4b71c5a8fecb30.

Rationalist Society of Australia Inc.
ABN 41 853 904 693
PO Box 1312, Hawksburn, Vic. 3142
info@rationalist.com.au

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In a media release titled 'Greens and Teals a threat to Catholic education', Catholic Schools NSW said, for example, "only the major parties" were "committed to supporting parental school choice"[2]. The media release said:

> *Dallas McInerney, CEO of Catholic Schools NSW (CSNSW), has cautioned Catholic school families against voting for the Greens or 'Teal independents' in the upcoming federal election. … 'The Greens have a long hostility toward non-government education, and their education policies threaten the affordability and existence of Catholic schools, potentially leading to significant increases in school fees,' Mr McInerney warned. … Mr McInerney said Teal candidates fared little better than the Greens due to their lack of clear policy positions, which pose an unacceptable risk to school communities. 'Many Teal candidates have been unclear, secretive, or have not taken the time to fully explain their positions on education, which is a serious concern'.*

The Victorian Catholic Education Authority told parents and carers in one particular electorate that the local member of parliament had been a "strong supporter of Catholic education for many years"[3]. It also advised parents and carers that "both major parties have assured Catholic education" that strong support would continue for the sector in the next parliament.

In response to such actions, independent candidates in some of these electorates told media outlets that they were "dismayed" by such communications and they complained that the Catholic education authorities had misrepresented their views.

Both Catholic Schools NSW and the Victorian Catholic Education Authority bodies have charity status for the purpose of 'advancing religion' – and, also, 'advancing education'.

Plymouth Brethren Church

In the closing stages of the election period, there was extensive media reporting about the alleged coordinated involvement of the Plymouth Brethren Christian Church (formerly Exclusive Brethren) in staffing polling booths and making phone calls as an unofficial third party operating

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[2] Catholic Schools NSW (30 April 2025),'Media release: Greens and Teals a threat to Catholic education', https://www.csnsw.catholic.edu.au/news/media-releases/media-release-greens-and-teals-threat-catholic-education

[3] *The Age*, (30 April 2025), 'Catholic schools election intervention in key seats sparks independents' ire', accessed November 2025, https://www.theage.com.au/national/catholic-schools-election-intervention-in-key-seats-sparks-independents-ire-20250430-p5lvfp.html

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in support of one political party – the Liberal Party[4]. The church denied claims that it was a coordinated effort.

We note that numerous members of parliament have since raised allegations about the church's behaviour in speeches to the federal parliament, saying that they witnessed church members engage in intimidatory, bullying, abusive and offensive behaviour at polling booths[5]. The members of parliament have also claimed, among other things, that church members manhandled Aboriginal women, followed MPs into their cars, and encircled MPs to block them from speaking to voters. Clearly, many voters who encountered these church members at polling stations were left distressed.

Many Australians were alarmed that, according to media reporting, this fringe religious group sought to influence results in key electorates and, potentially, the outcome nationally of the 2025 election. The Plymouth Brethren Christian Church has charity status for 'advancing religion', and it has associated charities – such as its OneSchool Global network – that have charity status for the same purpose and for other purposes.

Yet, there is serious doubt over whether this closed cultic group provides genuine public benefit for the community. Investigative reporting and testimony from former members have established that the Plymouth Brethren Christian Church engages in troubling patterns of coercive control and harmful and abusive practices, and restricts fundamental human rights and freedoms[6]. Indeed, the group forbids its own members from voting in elections. Authorities and parliaments are increasingly scrutinising such practices, as evidenced by the establishment of a parliamentary inquiry into cults and organised fringe groups in Victoria[7].

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[4] ABC (30 April 2025), 'Plymouth Brethren church members told to deny beliefs on voting, in campaign backing Liberals and Nationals', accessed November 2025, https://www.abc.net.au/news/2025-04-30/plymouth-brethren-deny-coordinated-campaign-support-coalition/105233290 ; *The Age* (2 May 2025), 'What's going on?': Why the Exclusive Brethren are out in force this election', accessed November 2025, https://www.theage.com.au/politics/federal/what-s-going-on-why-the-exclusive-brethren-are-out-in-force-this-election-20250429-p5lv49.html

[5] Rationalist Society of Australia, 'Labor MP Shayne Neumann raises concerns about election activities of Exclusive Brethren', 29 July, 2025, *YouTube*, https://www.youtube.com/shorts/yq7R7fpK-8w ; Rationalist Society of Australia, 'Multiple Labor MPs raise concerns about behaviour of Exclusive Brethren during election', 4 September 2025, *YouTube*, https://www.youtube.com/shorts/ua8nc-dHlUg

[6] See, for example: Bachelard, M (2008), *Behind the Exclusive Brethren*, Scribe.

[7] Legislative Assembly Legal and Social Issues Committee, 'Inquiry into the recruitment methods and impacts of cults and organised fringe groups', Parliament of Victoria, accessed November 2025, https://www.parliament.vic.gov.au/cofg

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An ongoing problem

Australian elections have previously witnessed similar attempts by religious charities to target electorates and candidates. At the 2022 federal election, the Australian Christian Lobby (ACL) – a charity for the purpose of 'advancing religion' – targeted a number of sitting Liberal Party members who had listened to the concerns of their electorates and voted to block the Morrison government's extreme Religious Discrimination Bill.

During that election campaign, media reported that the ACL had distributed leaflets and conducted push polling in the electorates of Trent Zimmerman, Dave Sharma, Bridget Archer and Fiona Martin[8]. The ACL argued that these members of parliament had "voted against protecting people of faith from discrimination" and had swung a wrecking ball into religious schools.

In the days after the 2022 election, the ACL's then managing director, Martyn Iles, told Christian radio program *20Twenty* that the defeat of moderate Liberal MPs was one of the "silver linings" of the election outcome and said the ACL's targeting of such moderate politicians had been successful[9]. He said:

> *I've known that the Liberals are going to lose at some point soonish. And the question for me is, 'What will be the manner of their loss? Will it be an improvement or will it not?' And I'm here to say that, without a doubt, that it has improved the Liberal Party significantly going forward as an opposition force and as a potential future government. And I think the ACL had a role in this improvement.*

Mr Iles revealed to the radio program that data showed that awareness of the ACL's campaign message in such electorates was hovering at around 40 per cent two days before the 2022 federal election, and that 25-33 per cent of people said the ACL's message affected their vote.

> *So we [inaudible] didn't make the difference, as the ACL, between the Liberals winning and losing, but we certainly made sure that what happened was that, as they lost, four of*

[8] *The Guardian* (2022), 'Australian Christian Lobby targets Liberal MPs who voted against religious discrimination laws', accessed October 2025, https://www.theguardian.com/australia-news/2022/apr/20/australian-christian-lobby-targets-liberal-mps-who-voted-against-religious-discrimination-laws

[9] Gladman, S (2022), 'Liberal Party: Following the Christian right into electoral wilderness', *Rationale*, accessed October 2025, https://rationalemagazine.com/index.php/2022/05/24/liberal-party-following-the-christian-right-into-electoral-wilderness/

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the five Liberal MPs who crossed the floor to vote against 'religious freedom' and vote against Christian schools have lost their seats today. And the last one hangs in the balance.

The need for reform of the charities system

Evidently, we have reached a point where some charities with charitable status for 'advancing religion' see no impediments to acting in opposition to, or in support of, particular parties and candidates at election time.

We note that, in the wake of media reporting about these election-related activities by charities during the 2025 federal election, the ACNC reminded charities of their obligations not to engage in a 'disqualifying purpose'. Indeed, the ACNC has since strengthened its guidelines[10]. Under the *Charities Act 2013 (Cth)*, a disqualifying purpose includes "promoting or opposing a political party or a candidate for political office".

Yet, there appears to have been little to no consequence for the charities alleged to have been involved in such conduct.

Australia needs a charities regulator with teeth

We urge the parliament to ensure that the charities regulator has sufficient enforcement powers to take appropriate compliance action when there is sufficient evidence of charities stepping over the line, especially during election campaign periods. Australians expect that the ACNC will also demonstrate a willingness to exercise such powers.

We are concerned that perceived inaction will result in continued flouting of ACNC guidelines and further erosion of public trust and confidence in the charities system, especially in regards to religious-based charities.

[10] Australian Charities and Not-for-profits Commission (2025), 'Charities and the federal election: ACNC and Australian Electoral Commission rules', accessed October 2025, https://www.acnc.gov.au/media/news/charities-and-federal-election-acnc-and-australian-electoral-commission-rules; Australian Charities and Not-for-profits Commission (2025), 'Remember to focus on issues, not party politics', accessed October 2025, https://www.acnc.gov.au/media/news/remember-focus-issues-not-party-politics ; Australian Charities and Not-for-profits Commission (2025), 'ACNC reminds charities to adhere to election advocacy rules', accessed October 2025, https://www.acnc.gov.au/media/news/acnc-reminds-charities-adhere-election-advocacy-rules

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Removal of 'advancing religion' as a charitable purpose

The cases outlined in this submission highlight the need for parliament to modernise the charities system to align with community values and standards.

We believe the parliament should remove 'advancing religion' as a charitable purpose. Charity status should be afforded to all organisations that conduct *genuine* charitable works for the *public benefit* and in an accountable manner, regardless of whether they have a religious affiliation.

If the 'advancing religion' purpose were removed, a sufficiently robust public benefit test would ensure that religious charities that do genuine work in the public benefit – of which there would be many – would continue to qualify for charity status under another charitable purpose, such as 'advancing education', 'advancing health' and 'advancing social welfare'.

Organisations with charitable status should demonstrate that they do not cause public detriment or harm to individuals. As we have previously pointed out to the Albanese government, there are damaging cults and high-demand groups – groups that deploy coercive control practices and cause immense harm to individuals, families and communities across Australia – that are recognised as charities for the purpose of 'advancing religion'[11].

Also, official recognition of 'advancing religion' as a beneficial thing for society appears to be at odds with the will of the people. As we know from Census data, Australians are increasingly walking away from religion. Even with the Australian Bureau of Statistics continuing to use a biased and coercive religion question that presumes *each respondent has a religion*, and thus inflating the religion result, 'no religion' will, based on the trends, likely *overtake* Christianity at the 2026 Census[12].

The current arrangement is also discriminatory in that it unjustifiably provides special treatment to religious worldviews. While recognising 'advancing religion' as a charitable purpose, Australia's charities laws do not provide the same treatment for organisations that advance non-religious worldviews – such as atheism, rationalism, secularism, and humanism.

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[11] Rationalist Society of Australia (2024), *'RSA asks government why damaging cults allowed to benefit from 'advancing religion'*, accessed November 2025, https://rationalist.com.au/rsa-asks-government-why-damaging-cults-allowed-to-benefit-from-advancing-religion/

[12] Australian Bureau of Statistics (2021), 'Religious affiliation in Australia', accessed October 2025, https://www.abs.gov.au/articles/religious-affiliation-australia#change-in-no-religion-over-time

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In July this year, our organisation raised this issue as an example of discriminatory and unfair treatment of non-religious people in government institutions and programs as part of a submission to the United Nations Human Rights Council's Universal Periodic Review (Fourth Cycle) into Australia's human rights[13]. The submission – supported by another eight non-religious, ex-religious and pro-secular groups – argued that such discrimination, on the grounds of religion and belief, was inconsistent with Australia's international human rights commitments.

Further, there is a public desire for greater transparency and accountability of religious charities. Many charities that have charitable status for 'advancing religion' also have 'Basic Religious Charity' (BRC) status. Such charities are exempt from meeting the financial reporting and governance standards that apply to all other charities[14]. Indeed, the Productivity Commission, in its 2024 *Future foundations of giving* report, recommended the removal of the BRC category and the associated exemptions to help deliver a "more transparent and consistent approach to regulating charities". Despite the federal government having received the Commission's report in May 2024, it is yet to respond to the Productivity Commission's recommendations.

Regards,

Si Gladman
Executive Director,
Rationalist Society of Australia

[13] Rationalist Society of Australia (2025), 'Coalition of groups highlights discrimination of non-religious people in submission to UN Human Rights Council, accessed October 2025, https://rationalist.com.au/coalition-of-groups-highlights-discrimination-of-non-religious-people-in-submission-to-un-human-rights-council/

[14] Australian Charities and Not-for-profits Commission, 'Basic Religious Charities', accessed October 2025, https://www.acnc.gov.au/manage-my-charity-type/basic-religious-charities

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